

25STCV07343 25STCV07343

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-23

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Case Number: 25STCV07343 Hearing Date: June 23, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE

RULING

RICARDO CAMPOS SANCHEZ, et al.,

Plaintiffs,

v.

AMERICAN HONDA MOTOR CO, INC., et

al.,

Defendants.

Case No:

25STCV07343

Hearing Date: June 23, 2026

Calendar Number: 5

Defendant American Honda Motor Co., Inc. moves to compel the depositions of plaintiff Marlene Romero and plaintiff Ricardo Campos Sanchez.

Defendant also requests the imposition of monetary sanctions in the amount of \$1,020.00 for each motion.

Defendant's moves to compel the depositions of plaintiff

Marlene Romero and plaintiff Ricardo Campos are DENIED. The respective requests for monetary sanctions are also DENIED.

Background

This action arises from the alleged sale and purchase of a defective 2020 Honda Insight.

On March 14, 2025, plaintiffs Ricardo Campos Sanchez

("Sanchez") and Marlene Romero ("Romero") filed a complaint against defendants

American Honda Motor Co., Inc. ("Defendant") and DOES through 10, inclusive,

alleging five causes of action for, inter alia, breach of the implied

warranty of merchantability and fraudulent inducement – concealment.

On December 3, 2025, Defendant filed an answer.

On April 30, 2026, Defendant filed the following two

motions: (1) a motion to compel the deposition of plaintiff Romero and

sanctions; and (2) a motion to compel the deposition of plaintiff Sanchez and

sanctions (collectively, the “Motions”).

On June 9, 2026, Plaintiffs filed respective oppositions to

the Motions.

On June 10, 2026, Defendant replied.

Legal Standard

Any party may obtain discovery . . . by taking

in California the oral deposition of any person, including any party to the

action.” (Code Civ. Proc., § 2025.010.) Code of Civil Procedure sections

2025.210 through 2025.280 provide the requirements for (among other things)

what must included in a deposition notice, when and where depositions

may be taken, and how and when the notice must be served. A deposition must be

“scheduled for at least 10 days after service of the deposition notice.” (Code

Civ. Proc., § 2025.270, subd. (a).)

“If, after service of a deposition notice,

a party to the action or an officer, director, managing agent, or employee of a

party, or a person designated by an organization that is a party . . . without

having served a valid objection under Section 2025.410, fails to appear for

examination, or to proceed with it, or to produce for inspection any document,

electronically stored information, or tangible thing described in the

deposition notice, the party giving the notice may move for an order compelling

the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

Discussion

The

Court has reviewed the declarations of defense counsel, Jeffrey M. Tsair, in support of the Motions. Attorney Tsair neither attests that a deposition notice was served on either of the Plaintiffs nor does Attorney Tsair attach a deposition notice as an exhibit.

In

opposition to the Motions, counsel for Plaintiffs attests, inter alia, that "[t]o date, Defendant has not served a Notice of Deposition of Plaintiff."

(Declarations of Lara Abdo Filed June 9, 2026, ¶ 3.) The replies do not contest the assertion that notices of deposition have not been served on either of the Plaintiffs.

Code

of Civil Procedure Section 2025.210 requires that a deposition notice be served. (Code Civ. Proc., § 2025.210, subd. (a).) A deposition "shall be scheduled for a date at least 10 days after service of the deposition notice."

(Code Civ. Proc., § 2025.270, subd. (a).)

Due

to the lack of deposition notices being served on either of the Plaintiffs, the

Court cannot compel the deposition of either plaintiff Sanchez or plaintiff

Romero. The Motions are DENIED.

It

follows that Defendant's requests for monetary sanctions are DENIED.

Defendant is ordered to give notice.